

From: [feedback](#)
To: [feedback](#)
Subject: FW: 2021/7478 - Phone Note [SEC=OFFICIAL, ACCESS=Personal-Privacy]
Date: Friday, 8 September 2023 12:42:48 PM

OFFICIAL
Personal privacy

From: Melbourne Registry <melbourne.registry@aat.gov.au>
Sent: Friday, 1 September 2023 2:31 PM
To: Melbourne Registry <Melbourne.Registry@aat.gov.au>
Subject: 2021/7478 - Phone Note [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

Taken by: Kira [REDACTED]
At: 01/09/2023 11:39AM
Message: 2021/7478 McLean and Comcare

Dr McLean rang the Tribunal at 11:12 am to make a complaint about the Tribunal.

As the case officer of Dr McLean's most recent cases he was put through to me. We spoke for around 20 minutes. It was a calm conversation.

2021/7478

Dr McLean expressed that he wanted to make a complaint about his work cover claim. He states that the Charter of Human Rights was breached by the AAT in this case by not providing him with legal representation. He stated he is 'a target of abusive of the Australian Government'. I advised that I could record his complaint as a file note and it would go through the complaints process. I read my notes of his complaint back to him to ensure I had correctly recorded it and he confirmed that I had. He asked that I send a copy of my summary to him so that he could make an amendments. I advised I would not be doing this but I would send him an email stating that I had taken a complaint by telephone from him today.

As per new registry procedures I will discuss this complaint with my team leader to establish what next steps can be taken and try and resolve this complaint at a registry level.

2023/5778

Dr McLean also mentioned the applications that were dismissed yesterday for no jurisdiction. I advised that we could find no legislation that said we could review those cases. He said we could review them. I advised he was welcome to send us the legislation that said we could and we would have a look at it. He said that wasn't fair as he doesn't have a lawyer. I advised he was welcome to contact legal aid if he would like but we can't supply him with a lawyer.

Lastly he wanted the AAT to acknowledge his relationship with his former partner and said he had the evidence to prove it. I explained that the AAT reviews government decisions and does not make public statements about the existence of relationships.

Call ended with a thanks.

Kira A
Tribunal Officer

**Administrative Appeals Tribunal
Registry**

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Please refer to the AAT website for information about temporary changes in place to respond to the impact of COVID-19 on services, including special measures practice directions:

<http://www.aat.gov.au/impact-of-coronavirus-covid-19-on-our-services>.

The AAT will not usually send a hard copy of any document sent to you by email, unless you request that we do so.

The Administrative Appeals Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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